

25LBCV03563 25LBCV03563

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Case Number: 25LBCV03563 Hearing Date: July 21, 2026 Dept: S28

BACKGROUND

On

December 31, 2025, Plaintiff Michelle Wilson, individually and as the Successor-in-Interest to decedent, Jonisha Brown ("Plaintiff") commenced this wrongful death and survival action against Defendants Blind Donkey Long Beach, LLC, Broadlind, L.P., John Doe, and John McCree.

On

February 13, 2026, Plaintiff filed the operative First-Amended Complaint ("FAC").

On

April

1, 2026, Defendants Blind Donkey and Broadlind ("Premises Defendants") filed the instant Demurrer to the FAC.

On April 24, 2026, Plaintiff filed an opposition.

On July 14, 2026, Premises Defendants filed a reply.

DISCUSSION

Applicable

Law

Code of Civil Procedure (“CCP”) section 430.10

subdivision (e) is grounds for a demurrer when the complaint fails to state facts sufficient to constitute a cause of action. CCP § 430.10(f) is grounds for a demurrer when the complaint is uncertain (vague and ambiguous). For purposes of ruling on a demurrer, material facts properly pleaded in the complaint must be taken as true. (*Serrano v. Priest* (1971) 5 Cal.3d 584, 491.)

A demurrer may challenge only defects that appear on the face of the pleading or from matters which are judicially noticeable. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 31; *Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994; California Practice Guide, Civil Procedure Before Trial, ¶7:8 (The Rutter Group 2024).)

The function of a demurrer is to test the legal sufficiency of a complaint, but not the truthfulness of the allegations. (*Donabedian v. Mercury Ins. Co.*, supra, 116 Cal.App.4th at 994; *Lewis v. Safeway, Inc.* (2015) 235 Cal.App.4th 385, 388; *SJJCA Aviation Services, LLC v. City of San Jose* (2017) 12 Cal.App.5th 1043, 1051-1052; California Practice Guide, Civil Procedure Before Trial, ¶7:5 (The Rutter Group 2024).) Demurrers are to be sustained where a pleading fails to plead adequately any essential element of the cause of action. (*Cantu v. Resolution Trust Corp.* (1992) 4 Cal.App.4th 857, 879-80.)

“A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. Therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed (Code Civ. Proc., §§ 430.30, 430.70). The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action.” (*Hahn v. Mirda* (2007) 147 Cal.App.4th 740, 747; *Accord McKenney v. Purepac Pharmaceutical Co.* (2008) 162 Cal.App.4th 72, 79.) When considering demurrers, courts read the allegations liberally and in context. (*McKenney*, supra, 167 Cal.App.4th at 77; *Taylor v. City of Los Angeles Dept. of Water and Power* (2006) 144 Cal.App.4th 1216, 1228.)

“If the complaint states a cause of action under any theory, regardless of the title under which the factual basis for relief is stated, that aspect of the complaint is good against a demurrer.” (*Quelimane Co. v. Stewart Title Guaranty Co.* (1998) 19 Cal.4th 26, 38.)

Preliminary

Matters

A.

Meet and Confer

“Before filing a demurrer pursuant to this chapter, the demurring party shall meet and confer in person, by telephone, or by video conference with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer. If an amended complaint, cross-complaint, or answer is filed, the responding party shall meet and confer again with the party who filed the amended pleading before filing a demurrer to the amended pleading.” (Code of Civil Procedure (“CCP”) § 430.41.)

Here, Premises Defendants’ counsel attempted to meet and confer with Plaintiff’s counsel by letter on March 12, 2026, and by telephone calls on March 25, 2026, and March 27, 2026. Despite acknowledging receipt of the March 12, 2026, letter, Plaintiff’s counsel has not responded to its contents or answered calls from Premises Defendants’ counsel to discuss the same. These meet and confer efforts are sufficient.

B.

Judicial Notice

Premises Defendants ask the Court to take judicial notice of a Google Map screenshot “to show an undisputable geographic fact, namely, that the alleged ‘subject premises’ and the location where the alleged accident actually occurred are geographically different locations.” This map marks the location of Premises Defendants’ bar and the location of the collision. This unopposed request is GRANTED.

Analysis

A.

Failure to State Sufficient Facts

Plaintiff asserts three causes of

action against Premises Defendants: (1) negligence, (2) premises liability, and (3) negligent hiring, retention, training, and supervision.

Premises

Defendants argue that the FAC fails to state sufficient facts to constitute any cause of action against them. This wrongful death and survival action arises out of a motor vehicle on pedestrian collision occurring “at or around Stanley Avenue and 7th Street in Long Beach, California” which resulted in Jonisha Brown’s death. (Benkner Decl. ¶ 4, Ex. A; FAC at ¶ 15.) Plaintiff named the unknown driver of the motor vehicle as “JOHN DOE,” claiming that he negligently caused the accident. (FAC, ¶¶ 16-17.) Plaintiff alleges that Premises Defendants “owned, managed, repaired, maintained, and/or controlled” a cocktail bar called Blind Donkey located at 149 Linden Avenue, Long Beach, California 90802 (the “Blind Donkey”). (FAC, ¶ 7.) The Blind Donkey is approximately 1.8 miles away from the spot of the accident. (Request for Judicial Notice, Benkner Decl. ¶ 4, Ex B, Google Maps Screenshot.)

Premises Defendants argue that the only logical reading of the FAC is that the Premises Defendants are responsible for an accident occurring 1.8 miles away from the Blind Donkey because either Decedent or “JOHN DOE” (or both), were intoxicated and purportedly overserved with alcoholic beverages while visiting the Blind Donkey. (FAC, ¶¶ 12-15.)

Premises Defendants point to the following authority to establish that they cannot be held liable for Plaintiff’s death under California law: The furnishing of alcoholic beverages to an intoxicated person is not the proximate cause of injuries resulting from intoxication, but rather the consumption of alcoholic beverages is the proximate cause of injuries. (Civ. Code § 1714 (b).) Further no person who furnishes alcoholic beverages to any person may be held legally accountable for damages, injury, or death of any third person resulting from the consumption of those beverages. (Civ. Code § 1714(c).) Civil Code section 1714(b) expressly states that “it is the intent of the Legislature to abrogate the holdings in cases such as *Vesley v. Sager* (1971) 5 Cal.3d 153...” In *Vesley*, an injured motorist brought suit against a tavern owner and others for injuries sustained when his automobile was struck by another automobile driven by an allegedly intoxicated tavern patron. (*Vesley*, supra, 5 Cal.3d at 154.) Moreover, “[e]very person who sells, furnishes, gives, or causes to be sold, furnished, or given away, any alcoholic beverage to any habitual or common drunkard or to any

obviously intoxicated person is guilty of a misdemeanor.” (Bus & Prof. Code § 25602(a).) And that no such person “shall be civilly liable to any injured person or the estate of such person for injuries inflicted on that person as a result of intoxication by the consumer of such alcoholic beverage.” (Bus & Prof. Code § 25602(b).)

In opposition, Plaintiff argues that the FAC does not rely solely on allegations that Decedent was intoxicated or that alcohol was served when it should not have been as it alleges a broader theory: that Defendants maintained and allowed dangerous conditions and unsafe business practices at the premises, knew or should have known of those risks, affirmatively contributed to them, and failed to take reasonable steps to prevent the resulting harm.

Here, the FAC fails to state a cause of action against Premises Defendants. While Plaintiff claims that their theory is not confined to the act of furnishing alcohol, but extends to how the premises were operated, supervised, and controlled, it is unclear from the FAC and from Plaintiff’s opposition how exactly Premises Defendants “maintained and allowed dangerous conditions and unsafe business practices at the premises, knew or should have known of those risks, affirmatively contributed to them, and failed to take reasonable steps to prevent the resulting harm.”

Each of the three causes of action asserted against Premises Defendants require proximate causation. (Ladd v. County of San Mateo (1996) 12 Cal.4th 913, 917 [negligence]; Kesner v. Superior Court (2016) 1 Cal.5th 1132, 1159 [premises liability]; Phillips v. TLC Plumbing, Inc. (2009) 172 Cal.App.4th 1133, 1139 [negligent hiring, supervision, training or retention]). As it stands, the FAC alleges only that Premises Defendants served alcohol to Decedent “when they knew or reasonably should have known that Decedent was or had become obviously intoxicated and in danger, and failed to take reasonable steps to cut off service, intervene, or protect Decedent.” (FAC, ¶ 49.) The FAC fails to state how Premises Defendants furnishing alcohol to Decedent proximately caused the motor vehicle to collide with her nearly 2 miles from their premises.

Further, the furnishing of alcoholic beverages cannot be found to be the proximate cause of injuries resulting from the consumption of those beverages. (Civ. Code § 1714(b).) In addition, civil liability is barred by statute for this conduct. (Civ Code § 1714(c); Bus &

Prof. Code § 25602(b).) Because these claims are barred by statute, amendment would be futile.

Therefore,
Defendants Blind Donkey Long Beach LLC and Broadlind, L.P.'s demurrer to the First Amended Complaint is SUSTAINED without leave to amend.

C.
Vague,
Ambiguous, and Uncertain

Demurrers for uncertainty are disfavored because ambiguities can be clarified through discovery. (Chen v. Berenjian (2019) 33 Cal.App.5th 811, 822.) The purpose of California's pleading standards is not to substitute for discovery, it is "to acquaint a defendant with the nature, source and extent of [the plaintiff's] cause of action." (Youngman v. Nevada Irrigation District (1969) 70 Cal.2d 240, 245; Doheny Park Terrace Homeowners Assn., Inc. v. Truck Ins. Exchange (2005) 132 Cal.App.4th 1076, 1099.)

Defendants contend that the FAC is fatally ambiguous and uncertain under CCP § 430.10(f).

Here, demurrers for uncertainty are disfavored and the Court finds that the FAC adequately acquaints Defendants with the nature, source and extent of the claims.

Thus, Defendants Blind Donkey Long Beach LLC and Broadlind, L.P.'s demurrer to the First Amended Complaint is OVERRULED on the grounds of uncertainty.

CONCLUSION

Defendants Blind Donkey Long Beach LLC and Broadlind, L.P.'s demurrer to the First Amended Complaint is SUSTAINED without leave to amend.